

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE:
Mental Health Counselor License of

CORY WUMKES
License No. 00857
Respondent

CASE NO. 21-0259

**COMBINED STATEMENT OF
CHARGES, SETTLEMENT
AGREEMENT, AND FINAL ORDER**

COME NOW the Iowa Board of Behavioral Science (“Board”) and Cory Wumkes (“Respondent”), 600 W 11th St, Cedar Falls IA 50613 , and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order (“Order”) pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 Iowa Administrative Code (IAC) 12.1. The Board has the authority to take disciplinary action pursuant to Iowa Code sections 147.55 and 272C.3, and 645 IAC chapter 33.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged under 645 IAC 33.2(29)“b” with making suggestive, lewd, lascivious or improper remarks or advances to a patient or client.

B. FACTUAL CIRCUMSTANCES

2. Respondent holds mental health counselor license number 00857, which is currently active through September 30, 2022.

3. While providing couples counseling, Respondent made inappropriate verbal comments and sent inappropriate text messages to one of the clients.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

4. The Board has jurisdiction over Respondent and the subject matter of this proceeding.

5. Respondent acknowledges that the allegations in the Statement of Charges, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

6. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to a hearing before the Board on the charges, but Respondent waives the right to a hearing and all attendant rights, including the right to appeal or seek judicial review of the Board’s action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

7. Respondent acknowledges that he has the right to be represented by counsel on this matter.

8. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

9. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

10. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

11. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

12. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

13. Respondent's license shall be placed on **PROBATION** for a period of one (1) year, subject to the following conditions:

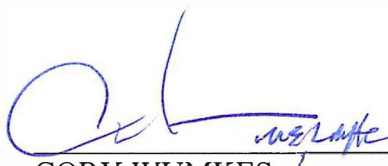
- a. Within sixty (60) days, Respondent shall complete a comprehensive boundaries evaluation with a Board-approved psychologist or psychiatrist. The Board shall be notified of the scheduled evaluation at least ten (10) days in advance so that the pertinent complaint information can be transmitted from the Board to the evaluator. Respondent shall ensure the evaluation report is sent directly from the evaluator to the Board. The evaluation must address Respondent's ability to safely practice as a mental health counselor and must include any recommendations for ongoing treatment or care. Respondent shall comply with all recommendations set forth in the evaluation report for ongoing treatment or care. Respondent understands and agrees that his license will be immediately suspended if the evaluator determines Respondent is unable to safely practice as a mental health counselor.
- b. Within sixty (60) days, Respondent shall complete the PBI Professional Boundaries and Ethics-Enhanced course. These continuing education hours are in addition to the standard continuing education requirements for license renewal and cannot be used to satisfy the required hours for license renewal. Respondent shall submit certificates of course completion to the Board.
- c. Respondent shall comply with his Personalized Protection Plan developed through the PBI Professional Boundaries and Ethics course.
- d. Respondent shall appear before the Board upon request for the purpose of reviewing his performance during the probationary period. Respondent

shall be given reasonable notice of the date, time, and place for such appearances.

- e. Respondent is responsible for all costs incurred to comply with these terms and conditions.
- f. Respondent shall provide written notification to the Board of any change of contact information or place of employment within ten (10) days of the change.
- g. The notifications and reports required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Behavioral Science, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to plpublic@idph.iowa.gov.

14. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

9/07/22
Date


CORY WUMKES
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Behavioral Science on September 9, 2022.

/s/ Tony Alden
Tony Alden, Board Executive
Iowa Board of Behavioral Science